

JRC
Date: 2/5/20

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING CHAPTER 5.52, MESSAGE ESTABLISHMENTS, WITHIN TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the following sections of Chapter 5.52, Massage Establishments, of Title 5, Business Licenses and Regulations, are hereby amended as set out in this ordinance. Sections currently existing in Chapter 5.52 not set out within this ordinance remain unchanged.

5.52.090 Massage establishment operating requirements.

No person will engage in, conduct or carry on, or permit others to engage in, conduct or carry on, the operation of a massage business establishment unless each of the following requirements are met:

A. Each person employed or acting as a massage therapist must have a valid permit issued pursuant to the provisions of this chapter. It is unlawful for any owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage establishment to employ or permit any person to act or provide services as a massage therapist who is not in possession of a valid permit.

B. The possession of a valid massage establishment license does not authorize the possessor to perform work for which a massage therapist permit is required.

C. Massage operations shall be carried on, and the premises shall be open, only between the hours of six a.m. and nine p.m.

D. A list of services available and the cost of such services must be posted in an open and conspicuous public place on the premises. The service must be described in readily understandable language. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of the massage business establishment will permit and no massage therapist will offer to perform nor will they perform, any service other than those posted.

E. The massage business establishment license, latest public health inspection form and a copy of the permit of each and every massage therapist employed by or working in the establishment must be displayed in an open and conspicuous public place on the premises.

F. A minimum of one toilet and wash basin must be provided for patrons in every massage establishment; however, if male and female patrons are to be served simultaneously, separate toilet facilities must be provided for male and female patrons. Hot and cold running water under pressure must be provided to all wash basins. Each wash basin will be provided with soap or detergent and sanitary towels placed in permanently installed dispensers. A trash receptacle will be provided in each toilet room.

G. Clean and sanitary towels, sheets and linens will be provided for each patron receiving massage services. No common use of towels or linens will be permitted and reuse is prohibited unless they have been first laundered. Heavy white paper may be substituted for sheets; provided, that such paper is used once for each person, then discarded into a sanitary receptacle.

H. Disinfecting agents and sanitizing equipment sufficient to assure cleanliness and safe conditions must be used for any instruments used in performing any massage.

I. Pads used on massage tables must be covered in a workmanlike manner with durable, washable plastic or other waterproof materials.

J. Each establishment must provide to all patrons clean, sanitary and opaque coverings capable of covering the patron's specified anatomical areas. Coverings will be used for one customer only and will not be reused without first being cleaned.

K. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage establishment will permit a massage to be given unless the patron's specified anatomical areas are covered during the entire massage by the covering referred to in subsection J of this section **except as provided in Section 5.52.105 of this chapter.**

L. With the exception of bathrooms or dressing rooms not open to public view, no owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of any massage establishment will permit any person in any area of the establishment which is used in common by patrons or which can be viewed by patrons from such an area, unless such person's specified anatomical areas are fully covered.

M. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage business establishment will permit any massage therapist to perform any service or task while in the presence of a patron or to be on the premises of a massage business establishment during its hours of operation unless the massage therapist is fully covered from a point not to exceed four inches above the center of the kneecap to the base of the neck. Such covering must be of an opaque material and maintained in a clean and sanitary condition.

N. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage establishment will permit any person to massage or intentionally touch the specified anatomical areas of another person while performing the services of a massage therapist **except as provided in Section 5.52.105 of this chapter.**

5.52.100 Massage therapist operating requirements.

No person will engage in, conduct or carry on the practice of a massage therapist unless each of the following requirements are met:

A. Possession of a valid permit issued pursuant to the provisions of this chapter, a copy of which will be made available upon request;

B. Massage therapy shall be provided only between the hours of six a.m. and nine p.m.;

C. A list of services available and the cost of such services will be available upon request. Services must be described in readily understandable language. No massage therapist will perform or offer to perform any service other than those listed;

D. Clean and sanitary towels, sheets and linens must be provided for each patron receiving massage therapy. No common use of towels or linens will be permitted and reuse is prohibited unless they have first been laundered. Heavy white paper may be substituted for sheets; provided, that such paper is used once for each person, then discarded into a sanitary receptacle;

E. Disinfecting agents and sanitizing equipment sufficient to assure cleanliness and safe conditions thereof must be used for any instruments used in performing massage therapy;

F. Pads used on massage tables must be covered in a workmanlike manner with durable, washable plastic or other waterproof material;

G. Massage therapists must provide to all patrons clean, sanitary and opaque coverings capable of covering the patron's specified anatomical areas. Such coverings shall be used for one customer only and will not be reused without first being cleaned;

H. No massage therapist will give a massage unless the patron's specified anatomical areas are covered during the entire massage by the covering required in subsection G of this section **except as provided in Section 5.52.105 of this chapter;**

I. No massage therapist will perform any service or task while in the presence of a patron unless the massage therapist is fully covered from a point not to exceed four inches above the center of the kneecap to the base of the neck. Coverings must be of an opaque material and

maintained in a clean and sanitary condition;

J. No massage therapist will massage or intentionally touch the specified anatomical areas of another person while performing the services of a massage therapist except as provided in Section 5.52.105 of this chapter.

5.52.105 Breast Massage Authorized.

A. No owner, operator, responsible managing employee, manager, permittee or licensee in charge of or in control of a massage establishment will permit any person to massage or intentionally touch the breasts of a female person while performing the services of a massage therapist unless:

1. The person holds a valid permit issued pursuant to the provisions of this chapter;

2. The person is trained in breast massage and has provided the city clerk with proof of the name and address of the school or distance learning school attended to be trained in breast massage, dates attended or enrolled, and a copy of the diploma or certificate of completion awarded the applicant showing the applicant successfully completed the school's breast massage curriculum; and

3. The patron signs a written consent form provided by the business and available for inspection by the city clerk, chief of police and city/county health director upon request.

B. No massage therapist will massage or intentionally touch the breasts of a female person unless each of the following requirements are met:

1. The person holds a valid permit issued pursuant to the provisions of this chapter;

2. The person is trained in breast massage and has provided the city clerk with proof of the name and address of the school or distance learning school attended to be trained in breast massage, dates attended or enrolled, and a copy of the diploma or certificate of completion awarded the applicant showing the applicant successfully completed the school's breast massage curriculum; and

3. The patron signs a written consent form provided by the business and available for inspection by the city clerk, chief of police and city/county health director upon request.

C. Failure to comply with these provisions will result in the suspension and/or revocation of a massage establishment license and/or massage therapist permit and may also result in criminal penalties pursuant to Section 5.52.140.

Section 2. This ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

Publish: Wyoming Tribune Eagle